

Select Year: 2025 ▼ Go

The 2025 Florida Statutes

[Title XXIII](#)
MOTOR VEHICLES

[Chapter 322](#)
DRIVER LICENSES

[View Entire Chapter](#)

322.03 Drivers must be licensed; penalties.—

(1)(a) Except as otherwise authorized in this chapter, a person may not drive any motor vehicle upon a highway in this state unless such person has a valid driver license issued under this chapter.

(b) A person who violates paragraph (a) commits:

1. Upon a first conviction, a misdemeanor of the second degree, punishable as provided in s. [775.082](#) or s. [775.083](#).
2. Upon a second conviction, a misdemeanor of the first degree, punishable as provided in s. [775.082](#) or s. [775.083](#).
3. Upon a third or subsequent conviction, a misdemeanor of the first degree, punishable as provided in s. [775.082](#) or s. [775.083](#), and the court must order the person to serve a minimum mandatory period of 10 days in jail.

The penalties provided in this paragraph do not apply to violations of s. [316.212](#).

(2)(a) A person who drives a commercial motor vehicle may not receive a driver license unless and until he or she surrenders to the department all driver licenses in his or her possession issued to him or her by any other jurisdiction or makes an affidavit that he or she does not possess a driver license. Any such person who fails to surrender such licenses commits a noncriminal infraction, punishable as a moving violation as set forth in chapter 318. Any such person who makes a false affidavit concerning such licenses commits a misdemeanor of the first degree, punishable as provided in s. [775.082](#) or s. [775.083](#).

(b) All surrendered licenses may be returned by the department to the issuing jurisdiction, together with information that the licensee is now licensed in a new jurisdiction, or may be destroyed by the department, which shall notify the issuing jurisdiction of such destruction. A person may not have more than one valid driver license at any time.

(3) Prior to issuing a driver license, the department shall require any person who has been convicted two or more times of a violation of s. [316.193](#) or of a substantially similar alcohol-related or drug-related offense outside this state within the preceding 5 years, or who has been convicted of three or more such offenses within the preceding 10 years, to present proof of successful completion of or enrollment in a department-approved substance abuse education course. If the person fails to complete such education course within 90 days after issuance, the department shall cancel the license. Further, prior to issuing the driver license the department shall require such person to present proof of financial responsibility as provided in s. [324.031](#). For the purposes of this paragraph, a previous conviction for violation of former s. [316.028](#), former s. [316.1931](#), or former s. [860.01](#) shall be considered a previous conviction for violation of s. [316.193](#).

(4)(a) The department may not issue a commercial driver license to any person who is not a resident of this state.

(b) A resident of this state who is required by the laws of this state to possess a commercial driver license may not operate a commercial motor vehicle in this state unless he or she possesses a valid commercial driver license issued by this state. Except as provided in paragraph (c), any person who violates this paragraph commits a misdemeanor of the first degree, punishable as provided in s. [775.082](#) or s. [775.083](#).

(c) Any person whose commercial driver license has been expired for a period of 30 days or less and who drives a commercial motor vehicle within this state commits a nonmoving violation, punishable as provided in s. 318.18.

(5) A person may not operate a motorcycle unless he or she holds a driver license that authorizes such operation, subject to the appropriate restrictions and endorsements. A person may operate an autocycle, as defined in s. 316.003, without a motorcycle endorsement.

(6) It is a violation of this section for any person whose driver license has been expired for more than 6 months to operate a motor vehicle on the highways of this state.

(7) A person who is charged with a violation of this section, other than a violation of paragraph (2)(a), may not be convicted if, prior to or at the time of his or her court or hearing appearance, the person produces in court or to the clerk of the court in which the charge is pending a driver license issued to him or her and valid at the time of his or her arrest. The clerk of the court is authorized to dismiss such case at any time prior to the defendant's appearance in court. The clerk of the court may assess a fee of \$5 for dismissing the case under this subsection.

History.—s. 15, ch. 19551, 1939; CGL 1940 Supp. 4151(629); s. 15, ch. 20451, 1941; s. 2, ch. 29721, 1955; s. 2, ch. 61-457; s. 1, ch. 63-156; s. 2, ch. 65-496; s. 24, ch. 73-334; s. 3, ch. 78-394; s. 2, ch. 80-308; s. 1, ch. 84-139; s. 10, ch. 86-185; s. 3, ch. 86-296; s. 17, ch. 87-161; s. 3, ch. 88-50; s. 16, ch. 89-282; s. 11, ch. 91-255; s. 73, ch. 94-306; s. 927, ch. 95-148; s. 10, ch. 2009-183; s. 27, ch. 2010-162; s. 10, ch. 2018-111; s. 7, ch. 2018-130; s. 1, ch. 2024-10.